VOTING AGREEMENT

Governing provision

An interested director must disclose the interest and recuse from the vote.

Recitals and Parties

This Agreement is made among Helioscope Robotics, Inc., a Delaware corporation (the Company), the holders of Common Stock listed on Schedule A, being the founders Renata Okonjo, Dashiell Vance and Lucia Marchetti together with the early exercisers identified there (the Key Holders), and the holders of Preferred Stock listed on Schedule B (the Investors). The Key Holders and the Investors are together the Stockholders.

The Investors have agreed to purchase shares of Series B Preferred Stock under a purchase agreement of even date (the Purchase Agreement), and it is a condition to the closing under that agreement that the Stockholders agree to vote their shares in the manner set out below, so that the composition of the Board of Directors and the approval of a sale of the Company are governed by an agreement rather than by the outcome of an unconstrained vote.

The parties accordingly agree as follows. This Agreement supersedes the voting agreement entered into in connection with the Series A financing, and each party to that agreement who is a party to this one releases the others from it, without affecting any liability that accrued under it before the date of this Agreement.

Section 1 - Definitions

Change of Control means a transaction or series of related transactions in which a person, or a group of persons acting in concert, acquires securities of the Company carrying a majority of the voting power, other than in an equity financing in which the Company issues shares primarily for the purpose of raising capital. Company Covered Person means a director, officer or employee of the Company.

Requisite Holders means, in relation to a matter, the holders whose approval that matter requires under the Company's certificate of incorporation or under this Agreement, determined series by series where a separate series vote is required. Sale of the Company means a Change of Control or a sale, lease, exclusive licence or other disposition of all or substantially all of the assets of the Company and its subsidiaries taken as a whole.

Shares means the shares of Common Stock and Preferred Stock held by a Stockholder at any time, including shares acquired after the date of this Agreement, whether by purchase, exercise of an option or warrant, conversion, stock dividend, split or otherwise, and Stock means the capital stock of the Company of any class or series. A reference to a Stockholder voting its Shares includes voting by proxy and executing a written consent in respect of them.

Section 2 - Board Composition and Designation Rights

Each Stockholder agrees to vote, or cause to be voted, all Shares it holds or otherwise controls, at every annual or special meeting of stockholders at which directors are elected and in every written consent in lieu of such a meeting, so as to elect and to keep in office as directors the persons designated in accordance with this Section, and so as not to elect any other person to a seat allocated by this Section.

The designation rights are allocated by class and series as Schedule 2.1 records: the holders of each series of Preferred Stock designate the director or directors allocated to that series, voting as a separate series; the holders of Common Stock designate the director or directors allocated to the Common Stock, one of whom is the person then serving as Chief Executive Officer; and the remaining seat or seats are filled by a person mutually acceptable to the designees of the Preferred Stock and the designees of the Common Stock. The authorized number of directors is fixed as the certificate of incorporation and the bylaws provide and is not fixed by this Agreement.

A designation is made by notice to the Secretary of the Company in the form Schedule 2.1 records, is effective on delivery, and may be revoked and exercised again by the same party. Where a party entitled to designate has not exercised the right, the seat allocated to it remains vacant, the vacancy may be filled only by that party, and the Board of Directors may not fill it. A vacant seat is not counted in determining whether a quorum of the Board of Directors is present.

A designee must be willing to serve, must not be prohibited by law or by an order from serving as a director, and must complete the questionnaire the Company uses to confirm those matters. A designation is effective on delivery notwithstanding that the questionnaire has not been completed, and the designating party must withdraw the designation if the completed questionnaire discloses a disqualification.

The seat allocated to the Chief Executive Officer is held by the person then serving in that office. On a cessation of service in that office, whether by resignation, removal or death, the director holding that seat is deemed to have resigned as a director with immediate effect, each Stockholder must vote to remove that person if the deemed resignation is ineffective for any reason, and the seat is filled by the successor Chief Executive Officer on appointment.

The observer appointed under the Investors' Rights Agreement is not a designee, does not occupy a seat allocated by this Section, and is not entitled to vote. Nothing in this Section obliges a Stockholder to vote in favour of a person who is not designated in accordance with it.

Schedule 2.1 - Designation, removal and vacancy mechanics by class

Class or series	Designating party	Form of designation notice	Removal mechanism	Vacancy filled by
Series B Preferred	Holders of Series B Preferred voting as a separate series	Notice signed by the Requisite Series B Holders, delivered to the Secretary	Written request of the Requisite Series B Holders	The same holders, by a further designation notice
Series A Preferred	Holders of Series A Preferred voting as a separate series	Notice signed by the Requisite Series A Holders, delivered to the Secretary	Written request of the Requisite Series A Holders	The same holders, by a further designation notice
Series Seed Preferred	Holders of Series Seed Preferred, where the designation right subsists	Notice signed by the Requisite Seed Holders	Written request of the Requisite Seed Holders	The same holders, or the seat remains vacant
Common Stock, chief executive seat	Held by the person then serving as Chief Executive Officer	No notice required; the seat follows the office	Automatic on cessation of service as Chief Executive Officer	The successor Chief Executive Officer on appointment
Common Stock, other seat	Holders of Common Stock voting as a separate class	Notice signed by the holders of a majority of the Common Stock	Written request of the holders of a majority of the Common Stock	The same holders, by a further designation notice
Mutually agreed independent seat	The Preferred designees and the Common designees acting jointly	Joint written notice signed by both groups of designees	Joint written request of both groups of designees	The same designees acting jointly
Mutually agreed independent seat, presently vacant	Not yet exercised; the parties have not agreed a candidate	Joint written notice when a candidate is agreed	Not applicable while vacant	The seat remains vacant until a candidate is agreed
Strategic investor observer	Kadence Industrial Holdings under the Investors' Rights Agreement	Notice of appointment to the Secretary	Notice of revocation by the appointing holder	The appointing holder, or the position remains unfilled
Designation right not exercised within the notice period	The party entitled to designate	May be exercised at any later time	Not applicable while unexercised	The seat remains vacant and may not be filled by the Board
Designee who resigns	The party that designated the resigning director	Further designation notice after the resignation	Not applicable; the resignation takes effect on delivery	The designating party, within the period in Section 4(c)
Designee who ceases to be qualified	The party that designated that director	Further designation notice after the disqualification	Written request of the designating party	The designating party
Designee subject to a pending qualification check	The party that designated that director	Designation effective on delivery, subject to the check	Written request of the designating party	The designating party
Seat created by an increase in the authorized number	As the certificate of incorporation and this Agreement allocate it	As allocated; no seat is created without that allocation	As allocated	As allocated, or the seat remains vacant
Director elected by the Board to fill a vacancy in error	Not a designated seat	Not applicable	Immediate removal at the request of the designating party	The party entitled to designate that seat
Committee membership for a Preferred designee	The Preferred designees under the Investors' Rights Agreement	Notice to the Secretary identifying the committee	Written request of the designating party	The designating party
Board chair	The Board of Directors from among the directors then serving	Board resolution, not a designation notice	Board resolution	The Board of Directors

Section 3 - Removal of Directors

Each Stockholder agrees to vote all Shares it holds so as to remove a director from the Board of Directors where the party that designated that director requests the removal in writing, and so as not to remove a director designated by another party except at the written request of that party. A request for removal may be made with or without cause and does not require a reason to be given.

A Stockholder may not vote to remove the director designated by the holders of a series of which it is not a holder, and a vote purporting to do so is void as between the parties to this Agreement. The Company must not include a proposal for the removal of a designated director in a notice of meeting unless the designating party has requested the removal in writing.

A director may resign at any time by notice to the Company, effective on delivery or at the later time the notice states. The Company must notify the designating party of a resignation promptly, and the designating party may designate a successor. Nothing in this Section limits the right of the holders of a class or series to remove a director in the manner the Delaware corporation statute provides (8 Del. C. § 141).

Section 4 - Vacancies and the Filling of Seats

A vacancy in a seat allocated by Section 2, however arising, is filled only by the party entitled to designate that seat, and each Stockholder agrees to vote its Shares so as to elect the person that party designates. The Board of Directors may not fill a vacancy in a seat allocated by Section 2, and an election by the Board of Directors in contravention of this Section is of no effect as between the parties.

The designating party should exercise the right within 30 days of the vacancy arising, and the Company must notify the designating party of the vacancy promptly after it arises. A failure to exercise the right within that period does not extinguish it: the seat remains vacant and the party may exercise the right at any later time, and no other party acquires the right by reason of the delay.

Where the mutually agreed independent seat is vacant because the designees have not agreed a candidate, the seat remains vacant and the Board of Directors continues to act with the directors then in office, subject to the quorum requirements of the bylaws. The parties record that the independent seat is presently vacant on that basis and that each group of designees has undertaken to consider candidates the other proposes in good faith.

Section 5 - Drag-Along Obligation

If a Sale of the Company is approved by the Board of Directors and by the holders identified for that purpose in the Purchase Agreement, then on receipt of a drag notice each Stockholder must vote all Shares it holds in favour of the transaction and against any competing proposal, must refrain from exercising the appraisal or dissenters' rights available to a stockholder under Delaware law (8 Del. C. § 262), and must execute the definitive purchase, merger or contribution agreement and the joinder and ancillary documents reasonably required to give effect to the transaction.

Each Stockholder must, on a drag notice, deliver the certificates representing its Shares or the book-entry transfer instructions for them, must sell the same proportion of the Shares of each class and series it holds as every other Stockholder is selling of that class and series, and must execute the custody, power of attorney and escrow documentation the transaction requires. A Stockholder is not obliged to deliver its Shares before the consideration for them is paid or placed with the paying agent.

The obligation in this Section is subject to each of the conditions in Schedule 5.2, and a Stockholder is not obliged to sell, vote or execute a document where a condition applicable to it is not satisfied. The Schedule records, for each condition, the Stockholders to which it applies, the documentation that evidences it, and the consequence of its not being satisfied.

The drag notice must describe the transaction, name the acquirer, state the consideration and the form or forms in which it is payable, state the allocation of the consideration among the classes and series, identify the escrow or holdback and the recourse the Stockholders are being asked to accept, and be accompanied by drafts of the definitive documents. A drag notice that omits a required particular does not start the obligation until the omission is remedied.

The obligation does not apply to an excluded transaction identified in Schedule 5.2, and does not apply where the acquirer is an affiliate of the holders whose approval triggered the obligation unless the transaction was approved by a committee of directors none of whom is affiliated with the acquirer, acting on the advice of an independent adviser, and the record of that process is delivered with the drag notice.

The approving holders may appoint a representative to act for the Stockholders in the transaction, and the representative may agree the funds flow, administer the escrow, settle a claim within the escrow and give and receive notices, but may not increase a Stockholder's liability beyond the cap in Schedule 5.2, accept a restrictive covenant on a Stockholder's behalf, or agree a change in the form or amount of the consideration payable to a Stockholder without that Stockholder's consent.

Schedule 5.2 - Drag-Along conditions, carve-outs and excluded transactions

Condition or carve-out	Applies to	Required documentation	Effect if not satisfied
Board approval of the Sale of the Company	All Stockholders	Certified board resolution	The drag obligation does not arise
Approval by the holders identified in Section 5(a)	All Stockholders	Written consent or meeting minutes	The drag obligation does not arise
Same form of consideration for each holder of a class	All Stockholders	Purchase agreement consideration schedule	The Stockholder is not obliged to sell
Right to elect among forms of consideration where offered	All Stockholders	Election form delivered with the drag notice	The Stockholder may take the default form
Consideration allocated as the certificate of incorporation requires	All Stockholders	Allocation schedule and officer certificate	The Stockholder is not obliged to sell
Representations limited to title, authority and organization	All Stockholders	Form of purchase agreement or joinder	The Stockholder may refuse the additional representation
No representation as to the Company's business by a non-officer	Stockholders who are not officers	Form of purchase agreement	The Stockholder may refuse that representation
Liability several and not joint	All Stockholders	Purchase agreement indemnity article	The Stockholder is not obliged to sell
Liability capped at the consideration actually received	All Stockholders	Purchase agreement indemnity cap	The Stockholder is not obliged to sell
Recourse limited to the escrow other than for fraud	All Stockholders	Escrow agreement	The Stockholder may refuse the excess recourse
Escrow contribution rateable to consideration received	All Stockholders	Escrow allocation schedule	The Stockholder may refuse the disproportionate share
No non-competition undertaking imposed	Stockholders who are not employees	Form of purchase agreement and ancillary forms	The Stockholder may refuse that undertaking
No non-solicitation undertaking beyond the existing awards	Stockholders who are not employees	Existing award agreements	The Stockholder may refuse that undertaking
Reimbursement of the Stockholders' reasonable expenses	All Stockholders	Expense statement delivered before closing	The Stockholder may withhold delivery until paid
Payment of the consideration at the closing	All Stockholders	Funds flow and paying agent instruction	The Stockholder may rescind its delivery
No transaction with an affiliate of the approving holders	All Stockholders	Independent process record under Section 5(f)	The transaction is an excluded transaction
Fairness process where an affiliate is the acquirer	All Stockholders	Independent committee minutes and adviser report	The drag obligation does not arise
Notice of the drag delivered with the required particulars	All Stockholders	Drag notice with the transaction terms attached	The obligation is suspended until notice is given
Opportunity to review the definitive documents before signature	All Stockholders	Drafts delivered with the drag notice	The obligation is suspended until delivery
Sale of the same proportion of each class held	All Stockholders	Transfer instructions by class	The Stockholder may sell rateably instead
Excluded transaction: an initial public offering	All Stockholders	Registration statement	No drag obligation in any circumstance
Excluded transaction: a reincorporation or holding company formation	All Stockholders	Board resolution and plan of merger	No drag obligation in any circumstance
Excluded transaction: an equity financing	All Stockholders	Purchase agreement for the financing	No drag obligation in any circumstance
Excluded transaction: a licence of intellectual property in the ordinary course	All Stockholders	Licence agreement	No drag obligation in any circumstance

Governing provision and cross-references

An interested director must disclose the interest and recuse from the vote.

This provision is read with the defined terms, the schedules to this instrument, and any consent or waiver recorded against it; a summary prepared from it does not vary it.

Section 6 - Additional Vote Covenants

Each Stockholder must vote its Shares in favour of an increase in the number of shares reserved for issuance under the Company's equity incentive plan where the increase has been approved by the Board of Directors including the directors designated by the holders of Preferred Stock, and must vote its Shares in favour of the amendments to the certificate of incorporation necessary to effect a transaction the Requisite Holders and the Board of Directors have approved. No Stockholder is obliged to vote in favour of an increase or an amendment that has not been so approved.

No Stockholder may grant a proxy, enter into a voting trust, or enter into an agreement or understanding with respect to the voting of its Shares that is inconsistent with this Agreement, and a proxy or agreement granted or entered into in contravention of this subsection is void as between the parties. A Stockholder may grant a proxy for a matter this Agreement does not address.

A director who has an interest in a matter before the Board of Directors must disclose the interest to the other directors before the matter is considered and must refrain from voting on it where the Board so resolves, and the Company must record the disclosure and the recusal in the minutes. A director who has recused remains counted for the purpose of a quorum, and the matter is decided by a majority of the directors who are entitled to vote on it.

Each Stockholder agrees not to deposit its Shares in a voting trust, not to enter into a shareholders agreement with a person who is not a party to this Agreement in respect of the matters this Agreement addresses, and to vote its Shares against a proposal that would frustrate a provision of this Agreement.

Section 7 - Irrevocable Proxy and Power of Attorney

Each Stockholder irrevocably grants to, and appoints, the person then serving as Secretary of the Company, and failing that person any officer the Board of Directors designates, as its proxy and attorney-in-fact, with full power of substitution, to vote its Shares on the matters this Agreement requires it to vote on and in the manner this Agreement requires, but only if that Stockholder fails to vote its Shares in accordance with this Agreement within five days of a request to do so.

The proxy granted by this Section is given to secure the performance of the obligations in this Agreement, is coupled with an interest, and is irrevocable for so long as this Agreement remains in force, at which point it terminates automatically. It revokes each prior proxy a Stockholder has granted in respect of the matters this Agreement addresses, and it does not extend to a matter this Agreement does not address.

Each Stockholder also appoints that person as its attorney-in-fact to execute, on its behalf and only where the Stockholder has failed to do so within five days of a request, a written consent this Agreement requires it to sign, a joinder or ancillary document this Agreement requires it to execute in a transaction subject to Section 5, and a transfer instruction for Shares it is obliged to sell under Section 5. The attorney-in-fact may not execute a document that imposes an obligation on the Stockholder beyond the obligations in this Agreement.

A proxy or power granted under this Section survives a transfer of Shares by the Stockholder that granted it, to the extent the transferee has become party to this Agreement, and the transferee is deemed to have granted the same proxy and power on becoming party. A Stockholder that is an entity must ensure that the proxy remains effective notwithstanding a change in its own signatories.

Section 8 - Legend, Transferees and Additional Parties

Each certificate representing Shares held by a Stockholder, and each book-entry notation for such Shares, must bear a legend recording that the Shares are subject to a voting agreement among the Company and its stockholders, that a copy of the agreement is available from the Company on request, and that a transferee takes subject to it. The Company must instruct its transfer agent accordingly.

A Stockholder may not transfer Shares to a person who has not executed a joinder to this Agreement, other than a transfer in a transaction in which this Agreement terminates, and the Company must not record a transfer made in contravention of this subsection. A transferee that executes a joinder becomes a Key Holder or an Investor according to the class of Shares transferred and the Schedule on which the transferor is listed.

A person who purchases shares of Preferred Stock from the Company after the date of this Agreement may become an Investor, and a person who acquires Common Stock on the exercise of an option may become a Key Holder, by executing a joinder, without the consent of the existing parties and without amending this Agreement. The Company must update Schedule A or Schedule B accordingly and must provide the updated Schedule to a Stockholder on request.

Section 9 - Term and Termination

This Agreement takes effect on the closing under the Purchase Agreement and continues until the earliest of the closing of a Qualified Public Offering as defined in the certificate of incorporation, the closing of a Sale of the Company, and the written agreement of the Company, the holders of a majority of the Shares held by the Key Holders and the Requisite Holders of each series of Preferred Stock.

On termination the proxy and power of attorney in Section 7 terminate automatically, the legend in Section 8 may be removed on request, and no provision of this Agreement survives except a liability that accrued before termination and the obligations of a Stockholder in a transaction subject to Section 5 that has been triggered but not completed.

Termination of this Agreement does not affect the certificate of incorporation, the Investors' Rights Agreement or the transfer restriction agreement, each of which terminates as its own terms provide. The parties record that the designation rights in Section 2 exist only under this Agreement and that on termination the composition of the Board of Directors is governed by the certificate of incorporation and the bylaws alone.

Section 10 - Remedies

The parties agree that a breach of this Agreement cannot be adequately remedied in damages, that the Company and each Stockholder is entitled to specific performance and to injunctive relief to prevent a breach or a threatened breach, and that no party will contend in a proceeding for such relief that damages are an adequate remedy. A party seeking such relief is not required to post a bond or other security.

The remedies in this Agreement are cumulative and are in addition to any remedy available at law or in equity. A party's failure to insist on the performance of an obligation, or its delay in doing so, is not a waiver of the obligation or of any later breach of it, and a waiver given on one occasion is effective only for that occasion.

The Company must not record a transfer, count a vote, or give effect to a written consent that contravenes this Agreement, and each Stockholder agrees that the Company may treat as ineffective a vote cast in contravention of Section 2, Section 3, Section 5 or Section 6.

Section 11 - Consent of Spouse

Each Key Holder who is married must deliver to the Company a consent of spouse in the form attached as Exhibit A, under which the spouse acknowledges the restrictions in this Agreement, agrees that any interest the spouse has in the Shares is subject to them, and appoints the Key Holder as the spouse's attorney-in-fact for the purpose of exercising the rights and performing the obligations in this Agreement.

A Key Holder who marries after the date of this Agreement must deliver a consent of spouse within 30 days of the marriage. The parties record that one consent of spouse remains outstanding at the date of this Agreement, that the Key Holder concerned has undertaken to deliver it, and that until it is delivered the Company may withhold the issue of a certificate representing Shares acquired by that Key Holder after the date of this Agreement.

The absence of a consent of spouse does not relieve a Key Holder of an obligation under this Agreement, and each Key Holder represents that it has authority to bind any community or marital property interest in its Shares whether or not the consent has been delivered.

Section 12 - Miscellaneous

Each party must execute the further documents and take the further actions reasonably necessary to carry out this Agreement, including the delivery of a transfer instruction, the completion of a questionnaire and the execution of a written consent. The Company must reflect the arrangements in this Agreement in its stock ledger, in its book-entry notations and in the instructions it gives its transfer agent, and must not adopt a bylaw inconsistent with it.

A notice under this Agreement must be given in writing and is effective on personal delivery, on confirmed electronic transmission, or on the business day after deposit with a nationally recognised overnight courier, in each case to the address shown for the recipient on Schedule A or Schedule B. A Stockholder that changes its address must notify the Company, and a notice given to the address last notified is effective even if the Stockholder has moved without notifying the Company.

This Agreement may be amended, and a provision of it waived, only with the written consent of the Company, the holders of a majority of the Shares held by the Key Holders, and the Requisite Holders of each series of Preferred Stock. An amendment or waiver that adversely affects one class or series differently from another requires the consent of the affected class or series, and the conditions in Schedule 5.2 may be amended only with the written consent of the Stockholders adversely affected by the amendment.

This Agreement confers no right on a person who is not a party to it, and no creditor of the Company or of a Stockholder may enforce a provision of it. The parties acknowledge that this Agreement was drafted jointly by counsel to the Company and counsel to the Investors, and that no rule of construction requiring a provision to be construed against the party that drafted it applies to it.

Each party waives, to the fullest extent permitted by law, any right to trial by jury in a proceeding arising out of or relating to this Agreement, including a proceeding to enforce the proxy in Section 7, a proceeding concerning a designation under Section 2 and a proceeding concerning the obligations in Section 5. This Agreement may be executed in counterparts, including by electronic signature, each of which is an original and all of which together constitute one instrument.

Section 13 - Committees, Chair and the Conduct of Board Business

The Board of Directors must maintain an audit committee and a compensation committee, and each Stockholder must vote its Shares, and each designee must use its authority as a director, so that at least one director designated by the holders of Preferred Stock serves on each of those committees for so long as a designation right subsists. A committee may not be constituted so as to exclude every Preferred designee from a matter the committee is delegated to decide.

The Board of Directors elects its chair from among the directors then serving, and the chair is not a seat allocated by Section 2. The chair has no additional vote and no power to determine a matter on which the directors are equally divided; a matter on which the directors are equally divided is not approved. The parties record that the office of chair is presently held by a director designated by the holders of Common Stock.

The Company must give notice of each meeting of the Board of Directors, and circulate the materials for it, in the manner and within the period the bylaws provide, and must not treat a matter as approved at a meeting for which notice was not given unless each director not present has waived notice in writing. A director may participate by electronic means, and participation by those means counts for the purpose of a quorum.

Section 14 - Conduct of Stockholder Meetings and Written Consents

Each Stockholder must attend, in person or by proxy, each meeting of stockholders at which a matter this Agreement addresses is to be considered, and must be present for the purpose of a quorum. A Stockholder that is an entity must ensure that the person attending on its behalf holds authority to vote its Shares in the manner this Agreement requires.

Where a matter this Agreement addresses is submitted for action by written consent in the manner the statute permits (8 Del. C. § 228), each Stockholder must execute and return the consent within five days of receiving it, and must not withhold execution in order to delay the action. The Company must deliver a copy of the executed consent, and notice of the action taken, to each Stockholder that did not sign it.

The Company must not submit to the stockholders a proposal that would contravene this Agreement, must not count a vote cast in contravention of it, and must record in the minutes of each meeting the manner in which the Shares subject to this Agreement were voted on a matter this Agreement addresses. The Secretary must retain the designation notices delivered under Section 2 with the minute book.

Section 15 - Interested Transactions and the Recusal Procedure

A director who has a financial interest in a matter before the Board of Directors, or who holds a position with a person that has such an interest, must disclose the interest and its material terms to the other directors before the matter is considered, and must not participate in the discussion after the disclosure except to answer questions the other directors put. The disclosure must be made whether or not the director considers the interest material.

The Board of Directors determines, by a vote of the directors who have no interest in the matter, whether the interested director must refrain from voting, and the determination is recorded in the minutes together with the disclosure. Where the interested director refrains from voting, the matter is decided by a majority of the directors entitled to vote on it, and the interested director remains counted for the purpose of a quorum.

A transaction between the Company and a director, or a person in which a director has an interest, is not void or voidable solely because of that interest where the conditions the statute prescribes are satisfied for an interested director transaction (8 Del. C. § 144). Each Stockholder agrees that the disclosure and recusal procedure in this Section is in addition to, and does not displace, the approval a transaction with an affiliate requires under the certificate of incorporation.

Section 16 - Indemnification and Insurance for Designees

The Company must enter into an indemnification agreement in the form approved by the Board of Directors with each designee on that person's appointment, and must maintain directors' and officers' liability insurance covering each designee on the terms the Investors' Rights Agreement requires. The Company must not amend the certificate of incorporation or the bylaws so as to reduce the indemnification or advancement available to a designee in respect of an act or omission occurring before the amendment.

The Company acknowledges that a designee may have rights to indemnification from the fund or entity that designated that person, that the Company's obligation is primary and the designating party's obligation is secondary, and that the Company waives any claim for contribution against the designating party in respect of an amount the Company is obliged to pay. The Company must include that acknowledgement in each indemnification agreement with a designee.

A designating party is not liable to the Company or to any Stockholder for an act or omission of its designee as a director, for the manner in which its designee votes, or for a decision not to exercise a designation right, and no fiduciary duty is owed by a designating party to another Stockholder by reason of holding a designation right under this Agreement.

Section 17 - Confidentiality and Sharing of Board Information

A designee may share information received in that capacity with the fund or entity that designated the designee, and with the officers, employees, professional advisers and auditors of that party, in each case where the recipient has a need to know it and is bound by an obligation of confidentiality at least as protective as the obligation in this Section. The designating party is responsible for a breach by a person to whom its designee has passed the information.

A designee may not share information received in that capacity with a person that competes with the Company, may not use it in connection with an investment in a competitor, and must not disclose a matter as to which the Board of Directors has resolved that legal privilege must be preserved. Where the Board of Directors so resolves in respect of a specific matter, the designee must inform the designating party that a matter has been withheld and of the general reason.

The obligations in this Section survive the cessation of a person's service as a director and the termination of this Agreement in respect of information received while it was in force, and do not apply to information that is or becomes publicly available otherwise than through a breach, or that the designating party held before the designee received it.

Section 18 - Company Covenants Supporting this Agreement

The Company must not increase or decrease the authorized number of directors, classify the Board of Directors, adopt a bylaw fixing a qualification for a director, or adopt a rights plan or similar arrangement, in each case where the action would impair a designation right under Section 2 or the drag obligation under Section 5, without the approval the certificate of incorporation requires and the written consent of the party whose right would be impaired.

The Company must include in each notice of a meeting at which directors are to be elected the persons designated under Section 2 as the nominees for the seats allocated by that Section, must not nominate a person for such a seat who has not been designated, and must not solicit a proxy for the election of a person who has not been designated. The Company must deliver a copy of each designation notice to each Stockholder on request.

The Company must maintain a register of designations recording, for each seat allocated by Section 2, the party entitled to designate it, the person currently designated, the date of the designation notice, and whether the seat is vacant. The register is available to a Stockholder on request and is prima facie evidence of the matters it records as between the parties.

Section 19 - Representations and Warranties of the Stockholders

Each Stockholder represents that it holds the Shares shown against its name on Schedule A or Schedule B free of any voting trust, proxy, agreement or understanding inconsistent with this Agreement, that it has full power and authority to enter into and perform this Agreement, and that this Agreement has been duly executed by it and is enforceable against it in accordance with its terms.

Each Stockholder that is an entity represents that its execution and performance of this Agreement have been duly authorized, that no consent of a partner, member or lender is required which has not been obtained, and that the person executing this Agreement on its behalf is authorized to do so. Each Stockholder that is an individual represents that no other person has an interest in its Shares requiring consent to this Agreement other than a spouse who has delivered or will deliver a consent under Section 11.

Each Stockholder acknowledges that it has had the opportunity to obtain independent legal advice on this Agreement, that counsel to the Company and counsel to the Investors have not acted for it, and that it does not rely on a statement made by counsel to another party in entering into this Agreement. A representation in this Section is given on the date of this Agreement and again on the date a Stockholder acquires additional Shares.

Section 20 - Schedules, Records and Administration

Schedule A lists the Key Holders, the Shares each holds and the address for notices, and Schedule B lists the Investors on the same basis. The Company maintains both Schedules, updates them on a transfer, an issuance or the admission of an additional party, and provides an updated Schedule to a Stockholder on request. An error in a Schedule does not affect a Stockholder's obligations under this Agreement.

Exhibit A is the form of consent of spouse referred to in Section 11, and Exhibit B is the form of joinder referred to in Section 8. The Company may amend the form of joinder to reflect a change in the parties or in the Schedules without the consent of the Stockholders, provided that the amended form imposes no additional obligation on a joining party.

The Company must retain the designation notices, the removal requests, the consents of spouse, the joinders and the register of designations with its minute book, and must produce them to a Stockholder on reasonable request. The parties record that the administration of this Agreement is a Company obligation and that a failure by the Company to maintain a record does not excuse a Stockholder's obligation to vote as this Agreement requires.

Section 21 - Effect of the Certificate of Incorporation and Other Agreements

This Agreement is subject to the certificate of incorporation, and where a provision of this Agreement cannot be performed without contravening the certificate of incorporation or the Delaware corporation statute, the certificate and the statute prevail and the provision is performed to the extent it lawfully may be. A Stockholder is not in breach of this Agreement by reason of declining to take an action that would contravene the certificate or the statute.

This Agreement does not confer an information right, a registration right or a participation right, each of which is conferred, if at all, by the Investors' Rights Agreement. It does not restrict a transfer of Shares except as Section 8 provides; restrictions on transfer are contained in the right of first refusal and co-sale agreement, and a transfer permitted by that agreement remains subject to the joinder requirement in Section 8.

Where the drag obligation in Section 5 and a provision of an equity award agreement held by a Key Holder are inconsistent, this Agreement prevails as to the Shares subject to it, and the Company must not grant an award containing a provision inconsistent with Section 5 without the consent of the Requisite Holders of each series of Preferred Stock.

Section 22 - Cooperation and Information in a Transaction Subject to Section 5

On the delivery of a drag notice the Company must make available to each Stockholder the definitive documents, the consideration allocation schedule, the escrow agreement and the funds flow, and must answer a Stockholder's reasonable questions about the allocation of the consideration to the class and series that Stockholder holds. A Stockholder is entitled to that information whether or not it holds an information right under the Investors' Rights Agreement.

Each Stockholder must provide the acquirer with the tax forms, wire instructions, letters of transmittal and identity verification the transaction requires, within the period the drag notice states, which may not be less than 10 days from the delivery of the forms. A Stockholder is not obliged to provide information beyond what is required in order to pay it and to record the transfer of its Shares.

The Company must not condition the payment of a Stockholder's consideration on that Stockholder executing a release, a restrictive covenant or a document imposing an obligation beyond those in Schedule 5.2, and must instruct the paying agent accordingly. Where an acquirer requires such a document, the Company must disclose the requirement in the drag notice, and Schedule 5.2 governs whether the Stockholder is obliged to execute it.

Section 23 - Assignment, Successors and Corporate Reorganizations

This Agreement binds and benefits the successors and permitted assigns of each party. A Stockholder may assign its rights under this Agreement only to a transferee of its Shares that has executed a joinder, and an assignment of a designation right is effective only where the transferee acquires the Shares by reference to which the designation right subsists. A purported assignment in contravention of this Section is void as between the parties.

On a reincorporation, holding company formation or other reorganization in which the holders of the Company's capital stock receive securities of another entity in the same proportions, the Company must cause that entity to assume this Agreement, and each Stockholder must execute the documents necessary to give effect to the assumption. This Agreement then applies to the securities received as it applied to the Shares surrendered.

The Company may not assign its obligations under this Agreement, and an obligation of the Company survives a change in its officers, its directors and its transfer agent. A Stockholder that transfers all of its Shares ceases to be a party, without affecting a liability that accrued while it held Shares.